LAWS2100 Jurisprudence
LAWS8005 Theories of Law and Justice

Dr Andrea Dolcetti

Welcome!





Genoa, Italy

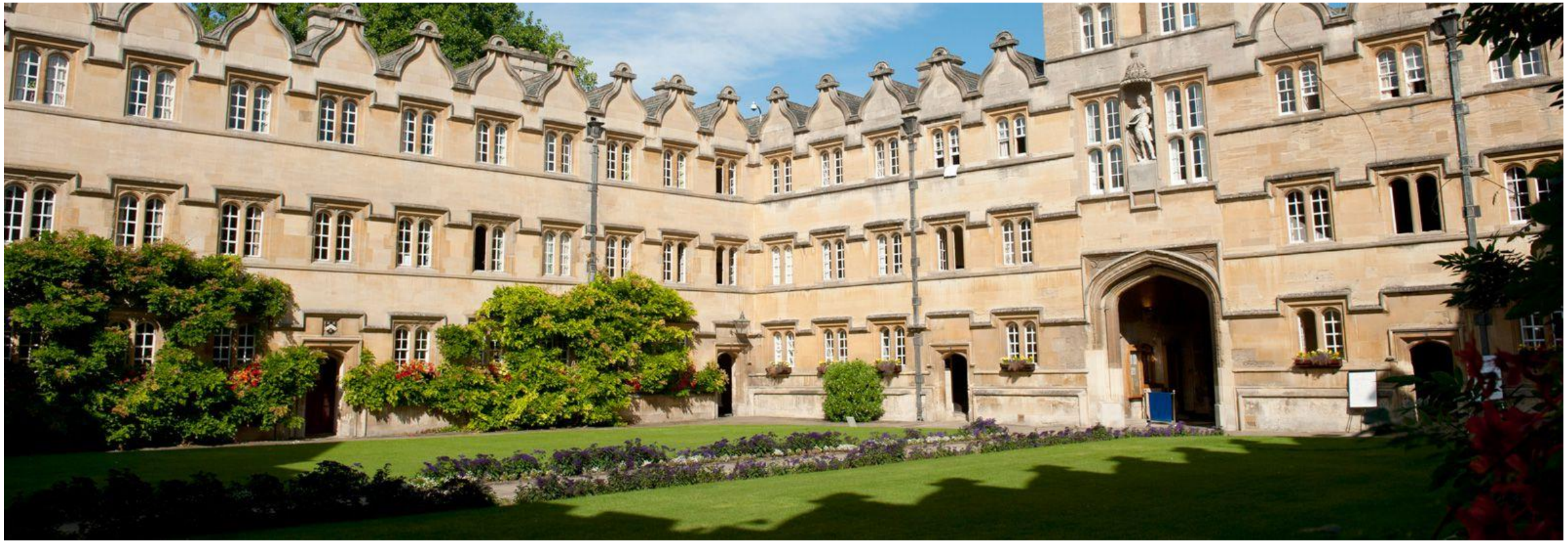
University of Genoa (1481)

UNIVERSITÀ DEGLI STUDI
DI GENOVA





St. Hilda’s College, Oxford (1893)



University College, Oxford (1249)



Trinity College, Oxford (1555)

Macquarie University (1964)



My research interests



The idea of sovereignty (especially state sovereignty)



Legal reasoning (in particular, legal disagreements and exceptions)



Methodology (concept formation and social reality)

Meet the teaching team

LAWS2100 Jurisprudence	Unit Convenor and Lecturer: Andrea Dolcetti	Tutors: Max Barnett, Georgia Cam, Sharon David, Andrea Dolcetti, Giselle Laszok, Patricia Nonis, Darius Parvizi-Wayne, Gil Marvel Tabucanon
LAWS8005 Theories of Law and Justice (S2)	Unit Convenor and Lecturer: Andrea Dolcetti	Tutors: Andrea Dolcetti, Gil Marvel Tabucanon, and Sebghatullah Qazi Zada

Unit admin and housekeeping

Please read:

- Unit Guide
- iLearn page

If you need to communicate with the Unit Convenor:

- General Discussion Forum
- Private Correspondence

Assessment

- Professional skills: 20%
- Practice-Based Task (Research Essay): 30%
- Final exam: 50%

Tutorial Absences

- You can miss up to three tutorials – no need to apply for Special Consideration
- If you cannot attend a tutorial, please submit a five-minute video recording (for further details please refer to the iLearn page)

Jurisprudence

The word ‘jurisprudence’ has more than one meaning	*Iurisprudentia* = Iuris (of right, of law) + prudentia (wisdom, foresight, knowledge)
	Jurisprudence as a body of judicial decisions: consider, for example, the expression ‘the constitutional jurisprudence of the High Court’
	Jurisprudence in relation to religious law (e.g., Hindu law, Jewish halakha, Christian canon law, Islamic sharia)
	Medical jurisprudence (legal medicine)

Jurisprudence and legal theory

- Jurisprudence as a general theory of law
- Brian Bix uses the terms ‘jurisprudence’, ‘legal theory’, and ‘legal philosophy’ interchangeably throughout his textbook (Preface to the ninth edition, p. vii)

➢ On what basis can we speak of a general theory of law?

➢ General jurisprudence as a philosophical inquiry into the nature of law?

- **General jurisprudence** deals with philosophical puzzles that are thrown up by all legal systems (e.g., what is law? what is a legal system? what is legal reasoning? is there a general obligation to obey the law?)
- **Particular jurisprudence**, which deals with puzzles that emerge in some legal systems or traditions but not necessarily all (e.g., what is common about the common law? in what sense is Parliament sovereign?)

Jurisprudence and conceptual analysis

- Analytical jurisprudence and analytical philosophy
- Conceptual analysis has been a key element/method of analytical philosophy
- Conceptual theories generally define terms by necessary and sufficient conditions
- "…conceptual theories and claims set the boundaries of categories. The drawing of such boundaries can be helpful in establishing a common ground for investigation and discussion, but the placement of the boundaries is often contested." (Bix, p. 18)

- According to Bix, purely conceptual theories can be contrasted with two different kinds of theories:
  - Non-conceptual theories in the natural sciences; and
  - Non-conceptual theories in the social sciences.

According to William Twining (1934 –2025)…

"…there is a lot of work to be done on usable concepts in cross-cultural and transnational legal discourse and that this is a task for analytical jurisprudence" (p. 34)

"It is part of my general thesis that conceptual analysis has an important part to play in reviving general jurisprudence, but that what is needed is a much broader conception of what is involved than those of Hart or Raz or even Stone" (p. 39)

"…conceptual elucidation is as important for social scientific investigation as it is for legal exposition and the methods of conceptual analysis developed by analytical philosophy are applicable to important concepts in empirical legal studies and the social sciences generally" (p. 57)

Legal theory in the real world

The Gove land rights case (*Milirrpum v Nabalco Pty Ltd* [1971] 17 FLR 141) – an Australian case in which Aboriginal claims to land were questioned on the basis that the customary rules of Aboriginal peoples could not be described by the court as legal rules.

Madzimbamuto v Lardner-Burke and another [1969] 1 AC 645 – a decision of the Judicial Committee of the Privy Council on United Kingdom constitutional law and the constitutional law of Rhodesia. The case considers the legality of the Unilateral Declaration of Independence made by Rhodesia in 1965, in light of Hans Kelsen's theory of law

The *Miller* case – UK first case on Brexit (decided by the UK Supreme Court in 2017), considering whether the British Government could withdraw from the European Union without an Act of Parliament giving permission to do so.

The *Miller* case

For that reason, we would not accept that the so-called **fundamental rule of recognition** (i.e. the fundamental rule by reference to which all other rules are validated) underlying UK laws has been varied by the 1972 Act or would be varied by its repeal. [60]

One argument advanced by the Lord Advocate and by Ms Mountfield QC on behalf of the first interested party is that the UK's withdrawal from the EU will alter the UK's **rule of recognition**: that is to say, the rule which identifies the sources of law in our legal system and imposes a duty to give effect to laws emanating from those sources. [173]

Six kinds of questions

1) Doctrinal questions

- For example, questions about domestic law (what the law is on a specific issue)

2) Normative questions

- Descriptive vs normative claims (is/ought distinction)
  - Normative: justificatory vs critical claims (and theories)

3) Empirical questions

- Explanatory/causal vs effects claims (and theories)

4) Metatheoretical questions

- What are the success criteria for a given theory?

5) Methodological questions

- How should we conduct research in this field?

6) Conceptual questions

- For example: What is a contract?; What is law?; What is justice?

Jurisprudence and the nature of law

(1) What is (the nature of) jurisprudence?

(2) What is (the nature of) law?



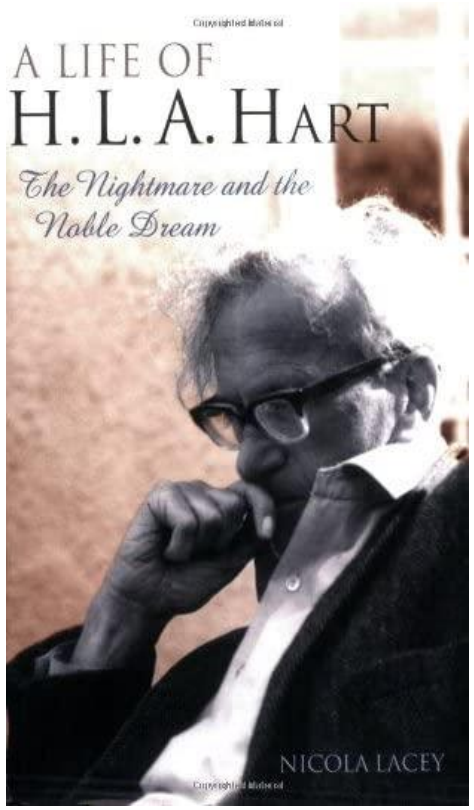
"In law as elsewhere, **we can *know* and yet not *understand***"

H.L.A. Hart, *Definition and Theory in Jurisprudence: An Inaugural Lecture* (The Clarendon Press, 1953)

"My aim in this book has been **to further the *understanding* of law, coercion, and morality** as different but related social phenomena."

H.L.A. Hart, *The Concept of Law* (OUP, 2012 [1961]) 6

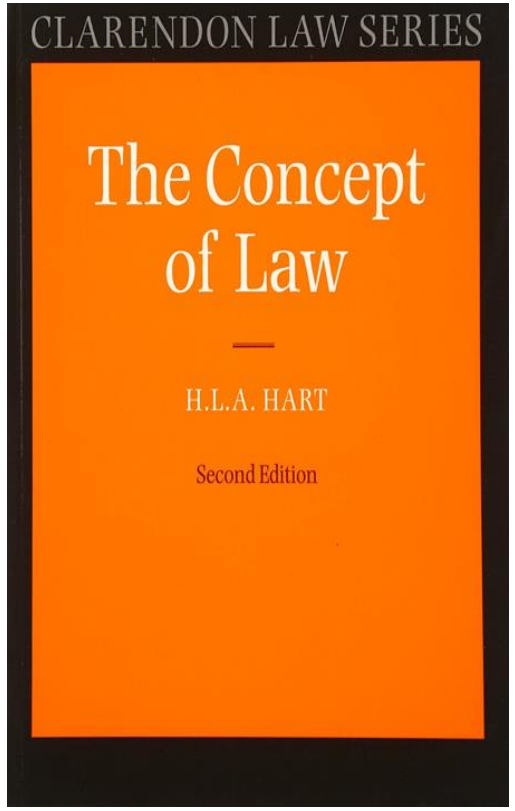
Herbert Lionel Adolphus Hart (1907-1992)



Professor of Jurisprudence at the University of Oxford and Fellow of University College, Oxford (1952-1973)

Inaugural lecture at Oxford: *Definition and Theory in Jurisprudence* (1953)

The Concept of Law (1961; 2nd ed. 1994; 3rd ed. 2012)



H.L.A. Hart's theoretical project

The purpose of the book "…is not to provide a definition of law, in the sense of a rule by reference to which the correctness of the use of the word can be tested; it **is to advance legal theory by providing an improved analysis of the distinctive structure of a municipal legal system** and **a better understanding of the resemblances and differences between law, coercion, and morality**, as types of social phenomena." (CL, 17)

"Notwithstanding its concern with analysis the book may also be regarded as **an essay in descriptive sociology**;…" (Preface)

Hart on the question ‘What is law?’

- Unending theoretical debate in books vs the ability of most people to cite examples of law
- Consider the “salient features” listed at page 3 of *The Concept of Law* (CL)
- The question “what is law?” expresses perplexities about the *general nature of law*
  - Clear/standard/paradigm cases of law (for Hart, “the legal systems of modern states”) vs questionable/challengeable/borderline cases (for Hart, “primitive law and international law”)
- Speculation about the nature of law has historically centred on a few principal issues
- Confusion about these issues may coexist with a firm *knowledge* of the law

Three persistent questions

"**We shall distinguish here three [...] recurrent issues**, and show later why they come together in the form of a request for a definition of law or an answer to the question 'What is law?', or in more obscurely framed questions such as '**What is the nature (or the essence) of law?**'" (H.L.A. Hart, *The Concept of Law*, OUP 1994 [1961], p. 6)

1. How does law differ from and how is it related to orders backed by threats?
2. How does legal obligation differ from, and how is it related to, moral obligation?
3. What are rules and to what extent is law an affair of rules?

Searching for a definition…

"…even skilled lawyers have felt that, though they *know* the law, there is much about law and its relations to other things that they cannot explain and do not *fully understand*. Like a man who can get from one point to another in a familiar town but cannot explain or show others how to do it, **those who press for a definition need a map exhibiting clearly the relationships dimly felt to exist between the law they know and other things**. Sometimes in such cases a definition of a word can supply such a map: at one and the same time it may make explicit the latent principle which guides our use of a word, and may exhibit relationships between the type of phenomena to which we apply the word and other phenomena." (CL, 14)

Triangles, elephants, and…law

- Triangle (def.) = three-sided rectilinear figure
- Elephant (def.) = quadruped *distinguished from others* by its possession of a thick skin, tusks, and trunk

These definitions are definitions *per genus et differentiam*

- This type of definition does two things at once:

It simultaneously provides a code or formula translating the word into other well-understood terms; and locates for us *the kind of thing* to which the word is used to refer, by indicating the features which it shares in common with a wider family of things and those which mark it off from others of that same family

- General kind + distinguishing features
- Can we define law *per genus et differentiam*?

Hart on the nature of legal theory

"My aim in this book was to provide **a theory of what law is** which is both **general** and **descriptive**." (H.L.A. Hart, *The Concept of Law*, OUP 1994 [1961], p. 239)

- ***General*** in the sense that it is not tied to any particular legal system or legal culture
- ***Descriptive*** in that it is morally neutral and has no justificatory aims

"As a means of carrying out **this descriptive enterprise** my book makes repeated use of a number of concepts such as *duty-imposing rules, power-conferring rules, rules of recognition, rules of change, acceptance of rules, internal and external points of view, internal and external statements, and legal validity*" (Ibid., p. 240)

Making, acknowledging, and complying with law involves acts of rational judgment. The reasonableness and justification of these acts cannot be assessed without premises about true human goods, the nature of persons and their acts, and the contours of the common good and human rights. […] **Issues of legal doctrine and interpretation resolvable by technique usually have some intellectual appeal**. But legal studies are really attractive and worthwhile because **law, and juristic argumentation, is an arena where themes and theses in ethics, political theory, and related philosophical domains all come to bear on – and crystallize out in – legislating and adjudicating to make a difference to human persons**.

J. Finnis, *Philosophy of Law: Collected Essays Volume IV* (OUP, 2011)

John Finnis on law and philosophy

Dickson on the problem of the nature of law

"[…] recent years have seen many thought-provoking challenges emerge **which cast doubt on the very possibility of, and/ or call into question the current manner of engaging in, that part of the philosophy of law which attempts to identify and understand law's nature**."

J. Dickson, *Elucidating Law* (OUP, 2022) 11-12

"Some […] theorists are wary of the idea that a human-made social construction such as law can have a nature which legal philosophers can attempt to identify and explain. **Others mount challenges in respect of what they regard as the key method employed by legal philosophers attempting to ascertain law's nature, namely conceptual analysis**, and regard that method, either in principle, and/or as currently practised in jurisprudence, with sceptical eyes…" (Ibid., p. 12)

Gardner on the value of studying jurisprudence

- As a philosophical subject, jurisprudence can assist in our development as human beings
- There are also two practical implications
  - Jurisprudence contributes to excellence in argument
  - Studying jurisprudence can help us recognise different perspectives and different aspects of a given legal issue

"A philosophical education encourages us to look […] for **timeless problems underlying topical problems**"

(John Gardner, 'Why study jurisprudence?', p. 8)

Leslie Green on legal philosophy

"**Legal philosophy is here to remind you** that you are not a slave to your own (legal) head, **that there is an escape from the 'default setting' of your own little legal system**, however profitable and powerful it may be. It will explain how something that is true 'legally speaking' may be utterly false. It will show you the difference between the way things are around here and the way things ought to be. It may even help you envision the way things could well be, if only we cared enough."

Semper Viridis - Les Green on law, philosophy, and some other passions (blog) - https://ljmgreen.com/2020/08/30/why-study-jurisprudence/

Julie Dickson's philosophy of legal philosophy

Understanding law by *elucidating* it

The task of legal philosophy is to illuminate and explain aspects of something that exists in our social reality and that we call 'law'

Law is a complex phenomenon, and the task of legal philosophy is never-ending

Elucidation is an active process which requires one to identify law's most important and significant features

A proper understanding of law can help us appreciate how law bears upon our practical reasoning – for example, it can help us decide if we should take law as having authority over us

How to approach this subject…

Curiosity

Charity

Clarity

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